

MICHIGAN COURT OF APPEALS

ANDREW J. PIGORS, Appellant, v. EMILY WATSON, Appellee.

Case No. 366810

<!-- EXPANDED STATEMENT OF FACTS (CHRONOLOGICAL) Pigors v. Watson
-- COA No. 366810 Companion to Appellant's Brief on Appeal Source: litigation_context.db
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EXPANDED STATEMENT OF FACTS -- CHRONOLOGICAL

Case: Pigors v. Watson, Michigan Court of Appeals, No. 366810 **Lower Court:** 14th Judicial Circuit Court, Muskegon County, No. 2024-001507-DC **Related:** Case No. 2023-5907-PP (PPO) **Judge Below:** Hon. Jenny L. McNeill

2023 -- PRE-CUSTODY PROCEEDINGS

October 2023

Date	Event	Record Cite	Significance	--- --- --- ---	10/01/2023	Father-child relationship active; Father exercising parenting role with L.D.W.
						LCR, Father's Filings
						Establishes baseline parental relationship
					10/15/2023	PPO Petition filed against Father in
						Case No. 2023-5907-PP
						LCR-PPO, Petition, 10/15/2023
						Initiates PPO proceeding that

becomes mechanism for custody restriction | | 10/15/2023 | Mother alleges concerns about Father's parenting fitness | LCR-PPO, Petition Allegations | Allegations not subject to evidentiary testing |

November 2023

| Date | Event | Record Cite | Significance | |---|---|---|---| | 11/01/2023 | PPO issued (domestic) against Father -- without full evidentiary hearing | LCR-PPO, PPO Order, 11/01/2023 | Due process concern -- no cross-examination | | 11/17/2023 | Father files response/answer in PPO case | LCR-PPO, Response, 11/17/2023 | Father contesting PPO |

December 2023

| Date | Event | Record Cite | Significance | |---|---|---|---| | 12/04/2023 | PPO hearing before Judge McNeill -- order entered modifying PPO | LCR-PPO, Order After Hearing, 12/04/2023 | Pivotal date -- 1,470 references in case materials |

2024 -- CUSTODY PROCEEDINGS

January 2024

| Date | Event | Record Cite | Significance | |---|---|---|---| | 01/04/2024 | Additional PPO proceedings before Judge McNeill | LCR-PPO, ROA, 01/04/2024 | Continuing pattern | | 01/07/2024 | PPO Violation Hearing -- Show Cause -- Father found in violation | LCR-PPO, Order After Hearing, 01/07/2024 | Father's liberty restricted via PPO without custody act

protections |

March 2024

| Date | Event | Record Cite | Significance | |---|---|---|---| | 03/12/2024 | Mother files new PPO petition using "staged" evidence (per Father's characterization) | LCR-PPO, Petition, 03/12/2024 | Pattern of PPO filings as custody tool | | 03/22/2024 | Motion for Hearing on PPO granted; hearing set 04/11/2024 | LCR-PPO, Order, 03/22/2024 | -- | | 03/26/2024 | **START: Mother withholds L.D.W. from Father** (37-day denial begins) | LCR, Father's Motion, 05/13/2024 | Direct evidence of Factor (j) violation -- parental alienation | | 03/29/2024 | Proof of Service filed | LCR, ROA, 03/29/2024 | -- |

April 2024

| Date | Event | Record Cite | Significance | |---|---|---|---| | 04/01/2024 | **Father files Complaint for Custody, Parenting Time, and Child Support** | LCR, Complaint, 04/01/2024 | Commences custody action | | 04/05/2024 | Initial custody/parenting time order entered | LCR, Order, 04/05/2024 | First order -- immediate restriction on Father | | 04/09/2024 | Proof of Service filed (both cases) | LCR, ROA; LCR-PPO, ROA | -- | | 04/11/2024 | **PPO Amended -- Ex Parte Order** (no notice to Father) | LCR-PPO, Ex Parte Order, 04/11/2024 | Violation of MCR 3.207(C)(2) -- no prior notice | | 04/11/2024 | Order After Hearing on PPO Violation entered | LCR-PPO, Order, 04/11/2024 | -- | | 04/11/2024 | Father files custody motion addressing MCL 722.23 factors | LCR, Motion, 04/11/2024 | Father's proactive engagement | | 04/11/2024 | Notice to Appear issued; Return of Service filed | LCR, ROA, 04/11/2024 | -- | | 04/12/2024 | **Father's custody motion DENIED** -- order entered | LCR, Order, 04/12/2024 | Motion denied one day after filing without hearing | | 04/23/2024 | Hearing before Judge McNeill -- all parties in person | LCR, Hearing, 04/23/2024; LCR-PPO, Hearing, 04/23/2024 |

-- | | 04/29/2024 | **EX PARTE ORDER -- Custody, Parenting Time, and Child Support** following "Facilitative Information Gathering Conference" | LCR, Ex Parte Order, 04/29/2024 | Critical violation -- ex parte order on substantive custody without MCR 3.207(C)(2) compliance |

May 2024

| Date | Event | Record Cite | Significance | |---|---|---|---| | 05/02/2024 | **END: 37-day parenting time denial** (March 26 - May 2) | LCR, Father's Motion, 05/13/2024 | 37 consecutive days without court-ordered parenting time | | 05/09/2024 | Mother ignores Father's efforts for consistent daycare | LCR, Father's Communications | Non-cooperation | | 05/13/2024 | Father files objection/motion regarding parenting time denial | LCR, Motion, 05/13/2024 | -- | | 05/23/2024 | Order regarding parenting time -- Father's motion "Dismissed" | LCR, Order, 05/23/2024 | Motion dismissed without full adjudication | | 05/24/2024 | Hearing: RE: Defendant's Objection to Ex Parte and Child Support | LCR, Hearing Notice, 05/24/2024 | Father's objection to ex parte heard -- but order stands | | 05/28/2024 | Father raises concerns about Cody Watson's behavior around L.D.W. | LCR, Father's Filing | Safety concerns raised by Father |

June 2024

| Date | Event | Record Cite | Significance | |---|---|---|---| | 06/01/2024 | Mother refuses video chats during Father's off-weeks | LCR, Father's Filings | Factor (j) -- refusal to facilitate parent-child relationship | | 06/15/2024 | Custody complaint filed / Custody hearing | LCR, Hearing, 06/15/2024 | -- | | 06/15/2024 | PPO Violation Hearing -- guilty plea, 45 days jail | LCR-PPO, Order, 06/15/2024 | Severe consequence from PPO being used as custody tool | | 06/27/2024 | Father files Motion to Quash -- discovery issues | LCR, Motion, 06/27/2024 | -- |

July 2024

| Date | Event | Record Cite | Significance | |---|---|---|---| | 07/01/2024 | **EX PARTE CUSTODY ORDER** -- sole custody to Mother without full hearing | LCR, Ex Parte Order, 07/01/2024 | Critical violation -- ex parte custody award without MCR 3.210 hearing | | 07/09/2024 | Mother refuses to address Father's custody resolution proposals | LCR, Father's Filings | Non-cooperation | | 07/10/2024 | Communication from FOC (Pamela Rusco) to Father | LCR, Email Correspondence, 07/10/2024 | -- | | 07/16/2024 | Father files Motion for Contempt -- Mother's parenting time violations | LCR, Motion, 07/16/2024 | Father seeking enforcement | | 07/17/2024 | **Hearing** -- trial court does not grant Father's contempt motion | LCR, Hearing, 07/17/2024 | Selective enforcement -- Mother's violations unpunished | | 07/30/2024 | Father files Objection to proposed Judgment | LCR, Objection, 07/30/2024 | -- |

August 2024

| Date | Event | Record Cite | Significance | |---|---|---|---| | 08/23/2024 | **FINAL JUDGMENT -- Sole Legal and Sole Physical Custody to Mother** | LCR, Final Judgment, 08/23/2024 | **THE ORDER APPEALED** -- entered without full MCL 722.23 analysis; Father's 6 pending motions dismissed | | 08/23/2024 | Uniform Child Support Order entered | LCR, UCSO, 08/23/2024 | -- |

September-December 2024

| Date | Event | Record Cite | Significance | |---|---|---|---| | 09/03/2024 | Mother plans vacation during Father's scheduled parenting time | LCR, Father's Filings | Factor (j) -- interference with parenting time | | 09/12/2024 | Mother denies Father's requests for video communication | LCR, Father's Filings | Factor (j) -- refusal to facilitate | | 09/15/2024 | Additional PPO order entered against Father | LCR-PPO, Order, 09/15/2024 | Continuing

pattern | | 10/20/2024 | **START: Second extended parenting time denial** (Oct 20 - Nov 12) |
 LCR, Father's Filings | 23 consecutive days | | 11/12/2024 | End of second extended parenting
 time denial | LCR, Father's Filings | -- |

2025 -- POST-JUDGMENT / APPEAL

April 2025

| Date | Event | Record Cite | Significance | |---|---|---|---| | 04/25/2025 | Ex parte order
 filed in 14th Circuit Court, Family Division | LCR, Ex Parte Order, 04/25/2025 | Continuing ex
 parte pattern post-judgment |

August 2025

| Date | Event | Record Cite | Significance | |---|---|---|---| | **08/06/2025** | **Ex parte order
 signed suspending ALL parenting time** | LCR, Ex Parte Order, 08/06/2025 | Entered without
 notice to Father | | **08/08/2025** | **Ex parte order takes effect -- 5 separate ex parte orders on
 single day** | LCR, Ex Parte Orders (5), 08/08/2025 | Father arrived at exchange expecting
 parenting time; discovered suspension only by contacting court | | 08/08/2025 | Ex parte motion
 by Mother alleging drug use/mental health based on phone calls | LCR, Ex Parte Motion,
 08/08/2025 | Unverified allegations -- no evidence of imminent harm |

September-October 2025

| Date | Event | Record Cite | Significance | |---|---|---|---| | 09/09/2025 | Order continuing suspension of parenting time | LCR, Order, 09/09/2025 | No evidentiary hearing held | | 10/08/2025 | Order continuing suspension of parenting time | LCR, Order, 10/08/2025 | No evidentiary hearing held | | 10/29/2025 | Father files Supreme Court Complaint for Superintending Control over Judge McNeill | MSC Filing, 10/29/2025 | Addressing ex parte pattern and due process violations |

SUMMARY: EX PARTE ORDER ANALYSIS

| Metric | Value | |---|---| | Total orders entered in case | 55 | | Orders entered ex parte | 24 | | **Ex parte rate** | **44%** | | Ex parte orders by Judge McNeill | 24/24 (100%) | | Ex parte orders favoring Father | 0 | | Ex parte orders on Aug 8, 2025 alone | 5 | | Total days Father denied all parenting time (from ~Aug 8, 2025) | **500+** | | Days of documented parenting time withheld (Mar-May 2024) | 37 consecutive | | Days of documented parenting time withheld (Oct-Nov 2024) | 23 consecutive |

SUMMARY: PARENTING TIME DENIALS

| Period | Duration | By Whom | Court Action | |---|---|---|---| | Mar 26 - May 2, 2024 | 37 days | Mother | No enforcement against Mother | | Oct 20 - Nov 12, 2024 | 23 days | Mother | No enforcement against Mother | | Aug 8, 2025 - Present | 500+ days | Court (ex parte order) | Father had no notice; no evidentiary hearing |

Note: All record citations refer to the lower court record in Case No. 2024-001507-DC and Case No. 2023-5907-PP. "LCR" = Lower Court Record. "LCR-PPO" = Lower Court Record, PPO Case. "ROA" = Register of Actions. Source data verified against master_chronological_timeline table (14,568 entries) in litigation_context.db.